

ENCAP ENERGY CAPITAL FUND XII, L.P.

**AMENDMENT TO
AGREEMENT OF LIMITED PARTNERSHIP**

This Amendment (“**Amendment**”) to the Amended and Restated Agreement of Limited Partnership of EnCap Energy Capital Fund XII, L.P., a Delaware limited partnership (the “**Partnership**”), is entered into effective June 30, 2023 (the “**Effective Date**”), by the General Partner (as defined below) in its capacity as the general partner of the Partnership. All capitalized terms used but not defined in this Amendment shall have the meanings ascribed to them in the Partnership Agreement (as defined below).

RECITALS

A. Reference is herein made to the Amended and Restated Agreement of Limited Partnership, dated as of May 17, 2023, by and among EnCap Equity Fund XII GP, L.P., a Delaware limited partnership (the “**General Partner**”), as the general partner, and the Limited Partners, governing the Partnership (the “**Partnership Agreement**”).

B. Pursuant to Section 12.1 of the Partnership Agreement, the General Partner has proposed to amend the Partnership Agreement as provided in this Amendment.

NOW, THEREFORE, as of the Effective Date, it is hereby agreed as follows:

1. Amendments to the Partnership Agreement.

- a. The definition of “Existing Fund” in Section 2.1 of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

“**Existing Fund**” shall mean any institutional upstream oil and gas fund, midstream fund or energy transition fund organized by EnCap prior to the Initial Closing Date.

- b. The definition of “Future Fund” in Section 2.1 of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

“**Future Fund**” shall mean (a) any Successor Fund and (b) any other institutional upstream oil and gas fund, midstream fund or energy transition fund organized by EnCap or its Affiliates after the date hereof.

- c. Section 5.3(b) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(b) Each Subscription Facility may be secured by (i) a pledge or other security interest to a third-party lender (or an agent for the benefit of a group of lenders) by the Partnership of the right to call all or a portion of the aggregate Unpaid Commitments and bank accounts to which Capital Contributions are funded

or held and (ii) a pledge or other security interest by the General Partner of the rights of the General Partner contained herein, including the right to deliver Call Notices, to receive payment of Capital Contributions and apply the same to obligations under the Subscription Facilities, to exercise all rights of the General Partner with respect to Unpaid Commitments, and to enforce all remedies against Partners that fail to fund their respective Unpaid Commitments pursuant to Call Notices and in accordance with the terms of this Agreement. The General Partner and the Partnership may participate in, guarantee, secure and borrow funds under Subscription Facilities together with one or more of the Alternative Investment Vehicles on any basis that the General Partner determines is fair and reasonable to the Partnership.

- d. Section 5.13(a) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(a) The General Partner shall give prompt written notice to the LPAC if any Key Person either (i) ceases to be involved in the day-to-day operations of EnCap or (ii) fails to comply with his or her obligations under Section 5.5 (which failure shall be determined without giving effect to the parenthetical “(while active as an employee of EnCap)” in such Section) (such cessation, a “**Key Person Departure**”). If a Key Person Departure occurs during the Commitment Period, the remaining Key Person shall appoint one or more of Kyle M. Kafka, Brad A. Thielemann, or another person approved by the LPAC as successor Key Persons. If (i) the remaining Key Person fails to make such appointment within 180 days of the Key Person Departure ~~or~~, (ii) both Key Persons cease to be involved in the day-to-day operations of EnCap or (iii) a Key Person Departure has occurred with respect to each of Jason M. DeLorenzo and Douglas E. Swanson (whether simultaneously or at separate times), then a “**Key Person Event**” shall have occurred. If, as a result of any such appointment, there are more than two Key Persons, except in the case of clause (iii) above, a Key Person Event shall only occur if there are not at least two Key Persons involved in the day-to-day operations of EnCap and any such appointments shall be made by a majority vote of the Key Persons.

- e. Section 7.2(a)(i) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(i) within 30 days after the end of each of the first three quarters of each Fiscal Year: (A) unaudited financial statements for the Partnership as of the end of and for such quarter, including a balance sheet and statements of income, Partners’ equity, and cash flow prepared in accordance with U.S. generally accepted accounting principles, consistently applied (except as disclosed therein), except (1) that such financial statements may omit footnote disclosures required by U.S. generally accepted accounting principles and year-end adjustments and (2) for the notes and financial highlights disclosures; (B) a statement of the estimated

capital of the Partnership and distributions to the Partners, an estimate of such Partner's Unpaid Commitment, each Partner's respective financial accounting capital statement as of the end of such quarter and a statement of changes in the value of such Partner's financial accounting capital statement; (C) detailed quarterly reports describing any fees received by the Partnership, the General Partner, the Principals, EnCap and their respective Affiliates from the issuer of any Security held by the Partnership or any Portfolio Company during such period, including the total amount of such fees received during the period, and a breakdown of each fee including (1) the amount of the fee, (2) the reason the fee is being paid (e.g., a description of any services provided to the Portfolio Company), (3) the date the fee was paid, and (4) from whom such fee was received; and (D) a reasonably detailed summary of distributions made to Feeder Fund Investors during such quarter.

- f. Section 7.2(a)(iv) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(iv) within 90 days after the end of each Fiscal Year of the Partnership, (A) a report which shall (1) discuss and review the status of each Portfolio Investment and its performance for such Fiscal Year and identify any material variances from any projections or plans previously furnished to the Limited Partners for such Portfolio Investment, (2) set forth the cost or fair market value of the Portfolio Investment as of the end of such Fiscal Year as estimated by the General Partner based on the most recent engineering or other relevant information in the possession of the General Partner with respect to such Portfolio Investment, and (3) contain a current valuation of each Limited Partner's allocable share of Partnership assets as estimated by the General Partner based on the most recent engineering or other relevant information in the possession of the General Partner with respect to each Portfolio Investment of the Partnership, (B) financial statements for the Partnership as of the end of and for such Fiscal Year, including a balance sheet and statements of income, Partners' equity, and cash flow, prepared in accordance with U.S. generally accepted accounting principles (and reflecting, in all material respects, valuations of the Partnership's investments that are prepared utilizing the guidelines contained in United States GAAP Accounting Standards Codification Topic 820: Fair Value Measurements and Disclosures, as in effect from time to time), which financial statements shall be audited by an Acceptable Accounting Firm and shall be accompanied by a statement of such accountants that their examination in connection with such financial statements has been made in accordance with generally accepted auditing standards, (C) a statement of the capital of the Partnership for such Fiscal Year, (D) a statement in reasonable detail of distributions to the Partners and each Partner's respective financial accounting capital statement as of the end of such Fiscal Year and a statement of changes in the value of such

Partner's financial accounting capital statement, and (E) a detailed report describing any fees received by the Partnership, the General Partner, the Principals, EnCap and their respective Affiliates from the issuer of any Security held by the Partnership or any Portfolio Company during such Fiscal Year, including the total amount of such fees received during such Fiscal Year, and a breakdown of each fee including (1) the amount of the fee, (2) the reason the fee is being paid (e.g., a description of any services provided to the Portfolio Company), (3) the date the fee was paid, and (4) from whom such fee was received;

- g. Section 11.4(a) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(a) Those Investor Limited Partners whose aggregate Investor LP Percentages exceed 66 2/3% may elect to remove the General Partner as the general partner of the Partnership within 120 days after notice is given to the Limited Partners of the occurrence of a Cause Event. As used herein, a “**Cause Event**” shall mean (i) the conviction by a court of competent jurisdiction of the General Partner or a Principal of a felony or a plea of nolo contendere (or its equivalent) in respect of same, in each case having a ~~Material Adverse Effect~~material adverse effect on the Partnership; (ii) the adjudication by a court of competent jurisdiction of fraud, willful or intentional misconduct, gross negligence or a material violation of applicable Securities laws by the General Partner or any Principal with respect to the Partnership; (iii) a material breach by the General Partner of any of its duties or obligations hereunder, or any of its material representations made herein, which breach is not cured within 60 days after receipt by the General Partner of a notice authorized by Investor Limited Partners whose aggregate Investor LP Percentages equal or exceed 51% that the applicable Investor Limited Partners believe that the General Partner has committed such a material breach (provided, that if such breach is not reasonably susceptible to cure within such 60-day period and if the General Partner is diligently and in good faith taking action to cure such breach, such 60-day period shall be extended for the period of time reasonably necessary for the General Partner to cure such breach, not to exceed 120 days); or (iv) the occurrence of an event described in Section 17-402(a)(4) of the Act with respect to the General Partner.

- h. Section 13.12(m) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(m) To the best of the General Partner's knowledge, other than as disclosed in the Confidential Offering Memorandum, as of the Initial Closing Date, there is no legal action, suit, arbitration or other legal, administrative or other governmental investigation, inquiry or proceeding (whether federal, state, local or foreign) pending or threatened against or affecting (i) the Partnership or any of its properties or assets, (ii) the General Partner or any of its properties or assets, (iii) any of the General Partner's general partners, limited partners or members or,

to the extent not otherwise covered in this clause (iii), any of the Principals to the extent such litigation is brought against any Principals in such capacity or otherwise in a fiduciary capacity, (iv) any entity which is an Affiliate of the General Partner or any properties or assets of such affiliated entity or (v) any prior fund managed by the Principals or any properties or assets of any such prior fund. To the best knowledge of the General Partner, other than as disclosed in the Confidential Offering Memorandum, there is no reasonable basis for any action, suit, arbitration, investigation, inquiry or proceeding of the type referred to in the immediately preceding sentence. Notwithstanding the foregoing, for purposes of clauses (i), (iv) and (v) above, the General Partner makes no representation or warranty regarding any legal action, suit, arbitration, or other legal, administrative or other governmental investigation, inquiry or proceeding pending or threatened against a Portfolio Company of the Partnership or a portfolio company of any of the prior funds, provided none of the Partnership, the General Partner, any Principals (to the extent such litigation is brought against them in such capacity or otherwise in a fiduciary capacity), or any of the prior funds is named as a party thereto, unless an adverse outcome of such litigation could have a ~~Material Adverse Effect~~material adverse effect on the Partnership or any such prior fund as a whole. During the five-year period prior to the Initial Closing Date, other than as disclosed in the Confidential Offering Memorandum, none of the General Partner or any Principal has been the subject of any action, proceeding or investigation that claimed or alleged fraud, misrepresentation or a material violation of any federal or state Securities law, rule or regulation.

- i. Section 13.12(o) of the Partnership Agreement is hereby deleted in its entirety and replaced with the following (*marked to show changes*):

(o) ~~No fee, bonus, or other compensation has been paid by or on behalf of the General Partner or the Partnership, or any Affiliate of either of them, to any placement agent, finder or other Person in connection with any Limited Partner's investment in the Partnership.~~ No fee, bonus or other compensation of any kind or value has been paid or given by the General Partner or the Partnership, or any Affiliate of either of them, to any member of the governing body, or any officer, employee, consultant or advisor, of any Limited Partner or any Affiliate of a Limited Partner for the purpose, or with the effect, of obtaining (i) an introduction to the Limited Partner, any member of its governing body or any of its officers, employees, consultants or advisors or (ii) a favorable recommendation with respect to an investment in the Partnership.

2. **Effect.** Except as expressly modified by this Amendment, the terms and provisions of the Partnership Agreement remain in full force and effect in accordance with their terms. This Amendment shall bind and benefit the partners of the Partnership and their respective heirs, beneficiaries, administrators, executors, receivers, trustees, successors and assigns.
3. **Counterparts.** This Amendment may be executed in one or more counterparts, each of which shall be an original and all of which shall constitute but one and the same document.

4. **Applicable Law.** Section 13.6 of the Partnership Agreement is hereby incorporated by reference into this Amendment and shall apply as if fully set forth herein *mutatis mutandis*.

[Remainder of page intentionally left blank]

IN WITNESS WHEREOF, the parties hereto have executed this Amendment as of the date and year first above written.

GENERAL PARTNER:

ENCAP EQUITY FUND XII GP, L.P.

By: EnCap Equity Fund XII GP, LLC, its
general partner

By: EnCap Investments L.P., its sole member

By: EnCap Investments GP, L.L.C., its general
partner

By: EnCap Investments Holdings, LLC, its sole
member

By: EnCap Partners, LP, its managing member

By: EnCap Partners GP, LLC, its general partner

By: Jason DeLorenzo
Name: Jason M. DeLorenzo
Title: Managing Member

SIGNATURE PAGE TO AMENDMENT TO
AGREEMENT OF LIMITED PARTNERSHIP OF
ENCAP ENERGY CAPITAL FUND XII, L.P.